

		should at least plead the ultimate facts showing grounds for these defenses. The demurrer to this affirmative defense is sustained with leave for Defendant to bring a motion to amend when and if Defendant discovers facts sufficient to support a defense of laches, waiver, or estoppel. <i>Tenth Affirmative Defense for Failure to State a Claim for Punitive Damages</i> Here, Defendant alleges that “[t]he first amended complaint fails to state sufficient facts to constitute a valid claim for punitive or exemplary damages.” This is a legal conclusion only. Plaintiffs’ objection for failure to allege sufficient facts does not really apply to what is essentially a pleading issue. The demurrer to this affirmative defense is overruled. <i>Eleventh Affirmative Defense for Failure to Set Out Claims with Sufficient Particularity</i> Defendant alleges here that “Plaintiffs have failed to set out their claims with sufficient particularity to permit defendant Matthew Caldwell to raise all appropriate defenses and, thus, defendant Matthew Caldwell reserves the right to assert additional defenses as a factual basis for these claims or defenses becomes known.” (Bold added.) This is not really an affirmative defense but a reservation of potential defenses, so Plaintiffs’ failure to allege sufficient facts objection really does not make sense. The demurrer to this affirmative defense is overruled.
11.	2024-1441105 Vanasopha vs. Bearley	Case Management Conference, only.
12.	2025-1461619 Garcia vs. General Motors, LLC	Case Management Conference, only.

13.	2025-1501284 Wei vs. Toyota Motor Sales, U.S.A., Inc.	Case Management Conference The general demurrer by Defendant Toyota Motor Sales, U.S.A., Inc. (“Manufacturer”) to the sixth cause of action for fraudulent inducement – concealment alleged in the First Amended Complaint filed by Plaintiff Daniel Wei (“Plaintiff”) is sustained. Manufacturer’s motion to strike Plaintiff’s prayer for punitive damages from Plaintiff’s Complaint is granted with leave to amend. Manufacturer’s unopposed request for the Court to take judicial notice of the Second Amended Complaint filed in <i>Dhital v. Nissan North America, Inc.</i> is granted. (Evid. Code, § 452, subd. (d).) However, the Court may not take judicial notice of the truth of the matter stated in the documents. (<i>Richtek USA, Inc. v. uPI Semiconductor Corp.</i> (2015) 242 Cal.App.4th 651, 659-660.) Judicial notice of other court records and files is limited to matters that are indisputably true. This generally means judicial notice is limited to the orders and judgments in the other court file, as distinguished from the contents of documents filed therein. (<i>Fremont Indem. Co. v. Fremont Gen. Corp.</i> (2007) 148 Cal.App.4th 97, 113.) The court cannot accept as true the contents of pleadings or exhibits in the other action just because they are part of the court record or file. Such documents are inadmissible hearsay. (<i>Day v. Sharp</i> (1975) 50 Cal.App.3d 904, 914.) <u>DEMURRER</u> The elements of a cause of action for fraudulent inducement are (1) a fraudulent representation; (2) to induce contract (or forbearance); and (3) that is not a part of the contract. (<i>A. A. Baxter Corp. v. Colt Industries, Inc.</i> (1970) 10 Cal.App.3d 144, 153-154.) “The required elements for fraudulent concealment are (1) concealment or suppression of a material fact; (2) by a defendant with a duty to disclose the fact; (3) the defendant intended to defraud the plaintiff by intentionally concealing or suppressing the fact; (4) the plaintiff was unaware of the fact and would have acted differently if the concealed or suppressed fact was known; and (5) plaintiff sustained damage as a result of the concealment or suppression of the material fact.” (<i>Rattagan v. Uber Technologies, Inc.</i> (2024) 17 Cal.5th 1, 40; <i>see, Boschma v. Home Loan Center, Inc.</i> (2011) 198 Cal.App.4th 230, 248.) “A duty to disclose a material fact can arise if (1) it is imposed by statute; (2) the defendant is acting as plaintiff’s fiduciary or is in some other confidential relationship with plaintiff that imposes a
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